

Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1967

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State of Tamilnadu- Act

Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1967

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Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1967

Act 410 of 1976

Published on 13 October 1976

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Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Rules, 1967

Published vide Notification No. G. O. Ms. No. 1439, C.T. &R.E., dated 13th October 1976 - S. R. O. No. A-410 of 1976

G. O. Ms. No. 1439, C.T. &R.E., dated 13th October 1976 - S. R. O. No. A-410 of 1976. - In exercise of the powers conferred by section 73 read with sub-section (5) of section 72-A of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act

26 of 1963

), the Governor of Tamil Nadu hereby makes the following Rules:-

1.

Short title.

- These Rules may be called the Tamil Nadu Inam Estates (Abolition and Conversion Into Ryotwari) Rules, 1967.

2.

Definitions.

- In these Rules, unless the context otherwise required,-

(a)

"Act" means the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act 26 of 1963

);

(b)

"Amendment Act" means the Tamil Nadu Inam Estates and Minor Inams (Abolition and Conversion into Ryotwari) Amendment Act, 1975 (Tamil Nadu Act 26 of 1975);

(c)

"Form" means a Form appended to these Rules;

(d)

"Rent" means the arrears of fair rent due under sub-section (4) of section 72-A of the Act.

3.

Deposit of rent in Courts.

(1)

The rent shall be paid to the owner or deposited in Court in three instalments in the manner specified under these Rules within a period of one year.

(2)

Every cultivating tenant desirous of depositing the rent shall deposit the same in the nearest Treasury or Sub-Treasury.

4.

Procedure for deposit of rent in Court.

- The Challan accompanying the deposit shall be in M.T.C. Form 10 in triplicate and shall specify as nearly as possible the following particulars:-

(a)

Name and address of the cultivating tenant depositing the rent;

(b)

Name and address of the owner or owners of the land to whom the rent is due;

(c)

The Head of Account to which the rent is credited, namely:-

"Deposits and Advances, etc., Civil Deposits, Civil Court Deposits, Deposits by Cultivating Tenants under the Tamil Nadu Estates (Abolition Conversion into Ryotwari) Act, 1963."

5.

Application for deposit of rent.

- Every cultivating tenant depositing the rent shall make an application to the Court in Form I together with the challan for the deposit of the amount into the Treasury or the Sub-Treasury, as the case may be, in person or through his authorised agent.

6.

Notice to the owners of the land.

- On receipt of the application under rule 5, the Court shall fix a date for hearing the application and shall cause a notice of the dates so fixed to be served on the owner or owners of the land mentioned in the application.

7.

Procedure for the disbursement of the rent deposited by the cultivating tenant.

(1)

On the dates fixed under Rule 6 or on any subsequent date to which the hearing may be adjourned, the owner of the land may appear in person or through his authorised agent.

(2)

If the owner of the land admits the correctness of the averments made in the application, he may file a petition expressing his willingness to accept the money deposited in full discharge of such rent and received the money so

deposited.

(3)

If the owner of the land does not admit the correctness of the averments in the application, he may file a counter-statement verified in the manner prescribed by the Code of Civil Procedure, 1908 (Central Act V of 1908) and the Court shall, thereupon, after taking such evidence or making such enquiry as may be deemed necessary, pass order on the application in accordance with the provisions of the Act.

Form I

(See rule 5)

Application for Deposit of Rent Under Section 72-A(4) of the Tamil Nadu Inam Estates (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act 26 of 1963

)

(1)

Name and address of the cultivating tenant.

(2)

Particulars of lands cultivated.

Name of the village and taluk

Survey number

Local name, if any

Classification (wet, dry, garden, manavari)

Extent

(1)

(2)

(3)

(4)

(5)

Total

(3)

(a)

Total amount of rent due and the period for which arrears of rent relates.

(b)

The market value of the rent if it is payable in kind.

(4)

Name and address of the owner of the land to whom rent is due.

(5)

Amount of rent deposited and the period to which it relates.

(6)

Remarks.

Place:

Date:

Signature of the applicant.

Declaration of The Applicant

I declare that I am a cultivating tenant entitled to the benefits provided under section 72-A of the said Act.

Signature of the applicant.

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